

Tata AI Legal Intelligence

Executive Compliance & Risk Assessment Report | Job ID: b50786fd-c601-494a-bcac-3a47d6530638

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Extracted Clauses & Risk Matrix

#1: CONFIDENTIALITY & COMPLIANCE

Risk: LOW

Text: "Confidential Information" shall mean and include all business strategies, plans and procedures, proprietary information, software program, documentation, tools, processes, methodologies, data and trade secrets, information relating to customers, employees, or business partners, and any other confidential or proprietary information and materials of the Disclosing Party, its affiliates, clients or suppliers that may be received or obtained by the Receiving Party as a result of this Agreement.

Rationale: - The definition of Confidential Information is broad and comprehensively covers business strategies, proprietary info, software, and customer data. - It aligns with POL-IND-2026-01 (Tata Enterprise Data Protection & NDA Standard) by protecting proprietary information and customer data. - There is minimal risk as it protects TCS's intellectual property and customer information.

#2: INDEMNIFICATION & LIABILITY

Risk: MEDIUM

Text: LISP shall indemnify, defend and hold harmless TCS and the Customer from and against any and all liabilities, damages, claims, fines, penalties, and expenses of whatever nature arising or resulting from breach of the aforesaid warranties or from the violation of any laws, rules, regulations or statutory requirements.

Rationale: - The clause provides strong unilateral protection for TCS and its Customers by holding LISP fully liable for breaches of warranties and statutory violations. - It aligns with the general objectives of RISK-CAP-99 (Liability Capping & Indemnity Policy) by securing indemnification from third-party service providers. - However, unlimited indemnification without liability capping may face resistance during negotiations or require verification against standard Tata risk appetite thresholds under RISK-CAP-99.

#3: INDEMNIFICATION & LIABILITY

Risk: LOW

Text: Limitation of Liability: - TCS shall not be liable to the LISP for any special, indirect, incidental, consequential (including loss of

Rationale: - The clause explicitly excludes TCS's liability for consequential, indirect, special, or incidental damages. - This strongly aligns with standard risk-mitigation guidelines under RISK-CAP-99 (Liability Capping & Indemnity Policy) to limit Tata's exposure. - Note that the clause text is truncated, so the full extent of liability capping for direct damages must be verified in the complete agreement.

#4: CONFIDENTIALITY & COMPLIANCE

Risk: MEDIUM

Text: LISP shall, at all times, comply with all applicable Facilities and/or Location related statutory laws, rules, regulations or policies including confidentiality and other obligations under this Agreement. LISP shall also procure and maintain all required approvals, permission, and consent throughout the term of this Agreement.

Rationale: - Obligates LISP to comply with all applicable local laws, regulations, and obtain necessary permits. - Aligns with POL-IND-2026-01 confidentiality standards and regulatory expectations for third-party vendors. - The handwritten edit circled on the document ("do on regular" intervals or similar check) indicates potential compliance monitoring/audit requirements that must be formalized to ensure there are no gaps in regulatory compliance.